

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
BRUCE HANSLEY,

Plaintiff,

-against-

THE CITY OF NEW YORK and
NYPD OFFICER MICHAEL ALGERIO,

Defendants.

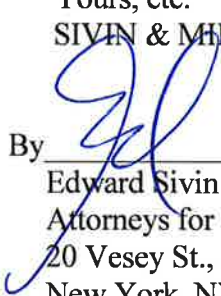
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 12, 2017

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-NYPD Officer Michael Algerio, c/o NYPD 5th Precinct, 19 Elizabeth St, New York, NY 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
BRUCE HANSLEY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER MICHAEL ALGERIO,

Defendants.

----- X

Plaintiff, by his attorneys Sivin & Miller, LLP, complaining of defendants, alleges
as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.
2. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, notices of claim and intention to sue were duly
served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced
until the expiration of thirty (30) days after such notices of claim and intention to sue were presented
and defendants have neglected and/or refused to make adjustment or payment thereon, and this
action is being commenced within one year and ninety days after the causes of action accrued
herein.
3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter “the NYPD”).
4. That at all times herein mentioned, defendant NYPD Officer Michael Algerio
(hereinafter “Algerio”) was and is employed as an officer with the NYPD.

5. That at all times herein mentioned, Algerio was acting within the course and scope of his employment as an officer with the NYPD.

6. That at all times herein mentioned, Algerio was acting under color of state law.

7. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

8. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

9. That on March 24, 2017, at or around 217 Bowery, New York, NY, Algerio, without legal provocation, probable cause, reasonable suspicion, or justification, and without a warrant, and without plaintiff's permission and consent, forcibly grabbed and seized plaintiff, forcibly slammed plaintiff to the ground, and otherwise used force against plaintiff that was not justified.

10. That following this initial seizure of plaintiff, Algerio forcibly applied handcuffs to plaintiff and, without probable cause, placed plaintiff under arrest and forcibly confined and imprisoned plaintiff and/or caused plaintiff to be confined and imprisoned at various other locations, including a police precinct and Central Booking.

11. That the aforesaid actions by Algerio were without legal provocation or justification, and were offensive and excessive under the circumstances.

12. That on or about March 25, 2017, Algerio also initiated and/or caused to be initiated against plaintiff a criminal prosecution in which plaintiff, without probable cause, was charged with obstruction of governmental administration, disorderly conduct, and harassment, crimes of which plaintiff was innocent and of which Algerio knew plaintiff to be innocent.

13. That in support of the criminal prosecution, Algeria made statements to the Office of the District Attorney that were false and that he knew were false, including that he observed plaintiff push an individual named Eric Edmonds, that he observed plaintiff attempt to strike Edmonds multiple times with a closed fist, that plaintiff ignored commands allegedly issued to him by Algeria, and that plaintiff flailed his arms and pulled himself free from Algeria's grip.

14. That in support of the criminal prosecution, Algeria also executed a Supporting Deposition in which he made accusations against plaintiff that he knew were false, including that he observed plaintiff push an individual named Eric Edmonds, that he observed plaintiff attempt to strike Edmonds multiple times with a closed fist, that plaintiff ignored commands allegedly issued to him by Algeria, and that plaintiff flailed his arms and pulled himself free from Algeria's grip.

15. That the aforementioned false statements and fabrications by Algeria constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

16. That as a consequence of the aforesaid prosecution, plaintiff was required to appear in court and was restricted in his travel and liberty.

17. That on or about July 13, 2017, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

18. That the aforesaid actions by Algeria were done intentionally and maliciously.

19. That as a result of the aforementioned actions by Algeria, plaintiff sustained severe physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical and healthcare expenses and other economic loss, was deprived of his liberty and freedom, was damaged in his reputation, and has been otherwise damaged.

20. That upon information and belief, prior to the events alleged herein Algerio had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused his authority against individuals while in the course and scope of his employment with the NYPD.

21. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Algerio had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused his authority against individuals while in the course and scope of his employment with the NYPD.

22. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Algerio was unfit to act as a police officer.

23. That despite the City's and the NYPD's prior knowledge of Algerio's unfitness and propensities, the City and the NYPD knowingly retained Algerio as an NYPD officer, thereby subjecting plaintiff to Algerio's improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION AGAINST BOTH DEFENDANTS
(Assault and Battery Under NY State Law)

24. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

25. That the aforesaid actions of Algerio constitute an assault and battery of plaintiff, for which Algerio is liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST BOTH DEFENDANTS
(False Arrest/False Imprisonment Under NY State Law)

26. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

27. That the aforesaid actions of Algerio constitute a false arrest and false imprisonment of plaintiff, for which Algerio is liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST BOTH DEFENDANTS

(Malicious Prosecution Under NY State Law)

28. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

29. That the aforesaid actions of Algerio constitute a malicious prosecution of plaintiff, for which Algerio is liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST ALGERIO

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations)

30. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

31. That the aforesaid actions by Algerio in using excessive force against, falsely arresting, falsely imprisoning, and maliciously prosecuting plaintiff constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST ALGERIO
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforesaid actions by Algerio constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, and Retention)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That the aforesaid actions by Algerio and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, and retention of Algerio.

SEVENTH CAUSE OF ACTION AGAINST THE CITY
(Monell Claim: Deliberate Indifference)

36. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

37. That the aforesaid actions by Algerio and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by Algerio in which Algerio violated the constitutional rights of citizens of the State of New York.

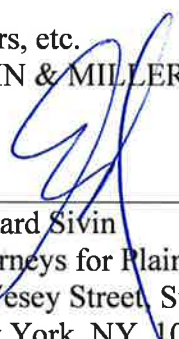
38. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against both defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Algerio in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against both defendants pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
October 12, 2017

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
October 12, 2017



EDWARD SIVIN

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

BRUCE HANSLEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, et. ano.,

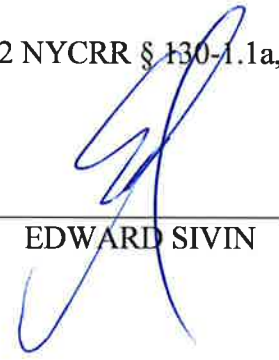
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
October 12, 2017